

		this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff must provide documentation and support for any request higher than this percentage at the final approval stage. The parties have not provided the court with any declaration from Defendant's counsel as to any potential conflict of interest as to the proposed cy pres recipient, as required by CCP §382.4. The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. The Request for Exclusion form should be referenced in the appropriate sections of the class notice so that class members are informed that they may use the form to request exclusion from the class settlement. The class release in the Definitions section, Paragraph 31, must be amended to remove the phrase: "This release shall apply to any and all claims arising at any point during the Class Period." The release may only include claims actually made in the complaints in this action, or that arise from the facts alleged in this action during the Class Period. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
10	30-2025-01487413 Alvarez vs. ASAS Group, Inc.	The tentative ruling is to continue Plaintiff Miguel A. Huerta Alvarez's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to November 16, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and

	the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff shall provide documentation and support for any request higher than this percentage at the final approval stage. The motion fails to provide the class members' and aggrieved employees' estimated high and low payments. The average payment must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. Paragraphs 7.6 and 7.8.4 of the settlement agreement state that the Administrator will resolve any workweek disputes. The documents should reflect instead that, while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute. Paragraph 7.5.2 of the settlement agreement states that the Administrator shall make the final determination as to the authenticity of an opt-out request. The documents should reflect instead that the court will ultimately decide any unresolved dispute regarding the authenticity of an opt-out request. The moving papers do not include a copy of the LWDA letter that counsel asserts was sent to the LWDA on May 23, 2025. (Gomez Dec. ¶ 4.) The court needs a copy of the letter to verify that the settlement terms are consistent with the notice provided to the LWDA. The Class Period is defined as ending on February 6, 2026. However, the escalator clause in Paragraph 8 of the settlement agreement provides for the option to either increase the settlement amount or change the Class and PAGA Periods
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		such that some of the class members and aggrieved employees might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members being told they are in the settlement but later being told they are not included in the settlement. Thus, defendant will have to either rely on or take another look at its estimated number of class members, or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class Period, rather than an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice, and have the class notice include the adjusted end date, and not be sent to non-participants. The following corrections must be made to the class notice: • Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice. • The administration costs of \$4,990.00 should be included in Section 7 of page 4 of the class notice. • Section 14 on page 7 of the class notice should note that class members who exclude themselves may get money from the PAGA penalties portion of the settlement if they are an aggrieved employee. • Section 21 on page 9 of the class notice should be amended to state: “If you do nothing, and the court grants final approval of the settlement, you will receive a Settlement payment, and you will be bound by the terms of Settlement, which means that you will not be able to start a lawsuit, continue a lawsuit, or be a part of any other lawsuit against the Defendant about the legal issues in the Action.” Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
11	30-2024-01439280 Espina vs. J & E Hospitality Group Inc.	The tentative ruling is to continue the hearing for Counsel Jorge Ledezma of Ledezma Law, APLC’s (“Counsel”) Motion to Be Relieved as Counsel for Defendant Edgar Estrada Galindo to August 31, 2026 at 1:30 p.m. Counsel failed to provide proof of service of the Notice of Motion and Motion, Declaration, and Proposed Order on